

IN THE SUPREME COURT OF PAKISTAN
(Original Jurisdiction)

PRESENT:

Mr. Justice Umar Ata Bandial, CJ
Mr. Justice Ijaz ul Ahsan
Mr. Justice Munib Akhtar
Mr. Justice Yahya Afridi
Mr. Justice Sayyed Mazahar Ali Akbar Naqvi
Mrs. Justice Ayesha A. Malik

Constitution Petition Nos.24 to 28 & 30 of 2023

(Trials of Civilian under the Army Act, 1952 is violative of the Constitution)

And

C.M. Appeal No. 80 of 2023 in Const. Petition Nil of 2023

(Declaration of trial of civilians under the Army Act, 1952 as unconstitutional, void and of no legal effect.)

Jawwad S. Khawaja

(in Const.P.24/2023)

Aitzaz Ahsan

(in Const.P.25/2023)

Karamat Ali and others

(in Const.P.26/2023)

Zaman Khan Vardag

(in Const.P.27/2023)

Junaid Razzaq

(in Const.P.28/2023)

Supreme Court Bar Association of Pakistan

(in Const.P.30/2023)

Imran Ahmed Khan Niazi

(in C.M. Appeal 80/2023)

Petitioner(s)

Versus

Federation of Pakistan, etc.

(in Const.Ps.24 & 27/2023)

Federation of Pakistan through the
Secretary, Ministry of Law and Justice,
Islamabad and others

(in Const.Ps.25-26, 28 & 30/2023)

Federation of Pakistan through Ministry of

Defence through its Secretary and others

(in C.M. Appeal 80/2023)

...Respondent(s)

- For the Petitioner(s) : Kh. Ahmad Hosain, ASC
(in Const.P.24/2023)
- Sardar Muhammad Latif Khan Khosa,
Sr. ASC
(in Const.P.25/2023)
- Nemo
(in Const.P.26/2023)
- Mr. Zaman Khan Vardag, in-person
(in Const.P.27/2023) (VL Lahore)
- Mr. Sameer Khoso, ASC
Syed Rifaqat Hussain Shah, AOR
(in Const.P.28/2023)
- Mr. Abid S. Zuberi, ASC
(in Const.P.30/2023)
- Mr. Ajmal Ghaffar Toor, ASC
(in C.M. Appeal 80/23)
- For the Federation : Mr. Mansoor Usman Awan,
Attorney General for Pakistan
Assisted by Mr. M. Ibrahim Khan, Adv
- For Govt.
of Balochistan : Mr. Muhammad Ayaz Swati, Addl.AG
- For Govt. of KP : Mr. Aamir Javid, AG
- For Govt. of Punjab : Mr. Khalid Ishaq, AG
(VL Lahore)
- For Govt. of Sindh : Mr. Saif Ullah, Addl. AG
(VL Karachi)
- For Imran Ahmed Khan Niazi (Respondent No.9
in Const P No.25/2023) : Mr. Uzair Karamat Bhandari, ASC
(VL Lahore)
- For Rana Sanaullah (Respondent No.10 in
Const P No.25/2023) : Mr. Shah Khawar, ASC
- For Muhammad Shehbaz Sharif (Respondent No.12
in Const P No.25/2023) : Mr. Ashtar Ausaf Ali, ASC
(VL Lahore)
- For Khawaja Muhammad Asif (Respondent No.11
in Const P No.25/2023) : Mr. Irfan Qadir, ASC
(VL Lahore)
- For other respondent(s) : Nemo
- Date of Hearing : 21.07.2023

ORDER

The learned Attorney General for Pakistan continued his submissions on the merits of these petitions. During his arguments he gave the following assurances:

- i. In the course of the investigations, that are still underway, *prima facie* no offence entailing the death penalty or a lengthy sentence has been made out against any detained civilian.
- ii. Till date no military trial of any detained civilian has commenced and the same shall not be started without prior information to the Court.
- iii. The accused civilians shall have the right to appoint private counsel of their own choice for their defence.
- iv. Family members and legal team of the accused civilians shall be allowed to attend the trial proceedings of the latter.
- v. Evidence shall be recorded at the trial of accused civilians under the law and procedure applicable to the criminal courts of ordinary jurisdiction.
- vi. The judgment delivered in the trial of the accused civilians shall be supported by reasons.

2. The learned Attorney General sought time to seek the instructions of the Federal Government on the matter of providing a right of appeal to the accused civilians against the judgment issued in their trials on questions of law and fact before an independent court. He further stated that he will apprise the Court about points (v) and (vi) noted in para 2 of its order dated 27.06.2023. The request is allowed.

3. To come up for statement by the learned Attorney General on the points noted in paragraph 2 above and for further proceedings on **01.08.2023**.

Chief Justice

Judge

Judge

Judge

Judge

Judge

Islamabad
21.07.2023
Naseer / Meher LC